

COMMUNITY FISHING IN THE TORRES STRAIT

PROHIBITION ON TAKING FISH WITHOUT A LICENCE

I, the Hon Mark Vaile, Commonwealth Minister for Agriculture, Fisheries and Forestry and Chairman of the Protected Zone Joint Authority, acting on behalf of the Authority in accordance with the powers conferred on the Authority by paragraph 35(1)(a) of the *Torres Strait Fisheries Act 1984*, make the following Notice under section 17 of the Act.

Dated this 25th day of March 1999

[signed]

MARK VAILE

CITATION

1. This Notice may be cited as Torres Strait Community Fishing Notice No. 1.

COMMENCEMENT

2. This Notice commences one month after the day on which, or the latter of the days on which, this determination is published in the *Gazette* and in the *Torres News* newspaper.

THIS NOTICE TO APPLY WITH OTHER NOTICES

3. This Notice applies in conjunction with any Fisheries Management Notices made under section 16 of the Act in force in the area of Australian jurisdiction.

INTERPRETATION

4. (a) In this Notice, unless the contrary intention appears, "the Act" means the *Torres Strait Fisheries Act 1984*; and
(b) terms used but not defined in this Notice have the same meaning as in the *Torres Strait Fisheries Act 1984* and the Torres Strait Fisheries Regulations.

PROHIBITIONS (GENERAL)

5. Pursuant to paragraph 16(1)(a) of the Act the taking, processing or carrying of fish by persons engaged in community fishing in the area of Australian jurisdiction is prohibited.

EXEMPTIONS FROM PROHIBITIONS

6. Pursuant to paragraph 16(1A)(d) of the Act a person holding a licence granted under subsections 19(2) or 19(3) of the Act that entitles that person to take, process or carry fish in the course of community fishing is exempt from the prohibitions in paragraph 5.
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